



भारत का राजपत्र The Gazette of India

सी.जी.-डी.एल.-अ.-29032025-262126
CG-DL-E-29032025-262126

असाधारण

EXTRAORDINARY

भाग II — खण्ड 1

PART II — Section 1

प्राधिकार से प्रकाशित

PUBLISHED BY AUTHORITY

सं० 10] नई दिल्ली, शनिवार, मार्च 29, 2025/चैत्र 8, 1947 (शक)

No. 10] NEW DELHI, SATURDAY, MARCH 29, 2025/CHAITRA 8, 1947 (Saka)

इस भाग में भिन्न पृष्ठ संख्या दी जाती है जिससे कि यह अलग संकलन के रूप में रखा जा सके।

Separate paging is given to this Part in order that it may be filed as a separate compilation.

MINISTRY OF LAW AND JUSTICE (Legislative Department)

New Delhi, the 29th March, 2025/Chaitra 8, 1947 (Saka)

The following Act of Parliament received the assent of the President on the 29th March, 2025 and is hereby published for general information:—

THE DISASTER MANAGEMENT (AMENDMENT) ACT, 2025

No. 10 OF 2025

[29th March, 2025.]

An Act to amend the Disaster Management Act, 2005.

BE it enacted by Parliament in the Seventy-sixth Year of the Republic of India as follows:—

1. (1) This Act may be called the Disaster Management (Amendment) Act, 2025.

Short title and
commencement.

(2) It shall come into force on such date as the Central Government may, by notification in the Official Gazette, appoint.

Amendment of
section 2.

2. In section 2 of the Disaster Management Act, 2005 (hereinafter referred to as the principal Act),—

53 of 2005.

(i) in clause (d), the following *Explanation* shall be inserted, namely:—

‘Explanation.—For the removal of doubts, it is hereby clarified that the expression “man made causes” does not include any law and order related matter or situation, or any situation arising from a law and order related matter or situation;’;

(ii) after clause (d), the following clause shall be inserted, namely:—

‘(da) “disaster database” means a database which includes disaster assessment, fund allocation detail, expenditure, preparedness and mitigation plan, risk register according to type and severity of risk and such other relevant matters, in accordance with such policy, as may be determined by the Central Government;’;

(iii) in clause (e),—

(a) in sub-clause (viii), for the words “rehabilitation and reconstruction”, the words “rehabilitation, recovery and reconstruction” shall be substituted;

(b) the following *Explanation* shall be inserted, namely:—

‘Explanation.—For the purposes of this clause, the expression “disaster management” is inclusive of “disaster risk reduction”, that is, the practice of reducing disaster risk through systematic effort to analyse and manage the causal facts of disaster through—

(i) reduced exposure to hazard;

(ii) reduced vulnerability of people, property, infrastructure, economic activity, environmental and natural resource; and

(iii) improved preparedness, resilience and capacity to manage and respond to adverse event;’;

(iv) after clause (e), the following clause shall be inserted, namely:—

‘(ea) “disaster risk” means the potential loss of life, injury, destroyed or damaged property, infrastructure and assets, economic and social disruption and environmental degradation, which could occur to a system, society or a community in a specific period of time, determined probabilistically as a function of hazard, exposure, vulnerability and capacity.

Explanation.—For the purposes of this Act, the expression “infrastructure” refers to physical structures, facilities, networks, systems and assets, which provide services that are essential to the social, ecological and economic functioning of a community or society;’;

(v) after clause (g), the following clauses shall be inserted, namely:—

‘(ga) “evacuation” means moving people or assets temporarily to safer places before, during or after the occurrence of a hazardous event;

(gb) “exposure” means the situation of people, buildings, infrastructure, production capacities and other tangible human assets, the environment and natural resources located in hazard-prone areas.

Explanation.—For the purposes of this clause, the expression “hazard-prone areas” means those locations where different hazards are known to have occurred or likely to occur;

(gc) “hazard” means a process or phenomenon relating to a disaster that may cause—

- (a) loss of life;
- (b) injury or other health impacts;
- (c) damage to property, buildings and infrastructure;
- (d) social and economic disruption; or
- (e) environmental degradation;

(gd) “High Level Committee” means the Committee constituted under section 8B;’;

(vi) in clause (h), after the words “Zila Parishad”, the words “or Autonomous District Council” shall be inserted;

(vii) in clause (i), after the word “situation”, the words “including the provisioning of disaster-resilient infrastructure” shall be inserted;

(viii) after clause (j), the following clause shall be inserted, namely:—

‘(ja) “National Crisis Management Committee” means the Committee constituted under section 8A;’;

(ix) after clause (l), the following clause shall be inserted, namely:—

‘(la) “National Policy” means a statement of guiding principles, and broad course of actions adopted by the Government at the national and state level in pursuit of,—

- (a) national objectives of reducing disaster risk and loss;
- (b) improving preparedness; and
- (c) ensuring resilient recovery from disaster;’;

(x) for clause (m), the following clause shall be substituted, namely:—

‘(m) “preparedness” means the knowledge and capacity of Government, response and recovery organisation, community and individual to anticipate, respond to and recover from threatening disaster situation or disaster;’;

(xi) after clause (n), the following clause shall be inserted, namely:—

‘(na) “prevention” means activity and measure to avoid potential adverse impact of disaster;’;

(xii) for clause (o), the following clauses shall be substituted, namely:—

‘(o) “reconstruction” means rebuilding and restoration of infrastructure, service, building and facility required for the functioning of a community affected by a disaster;

(oa) “recovery” means the restoration or improvement of economic, physical, social, cultural and environmental assets, system and activity, of a disaster-affected community;

(ob) “rehabilitation” means the restoration of basic service, facility and capacity for the functioning of a disaster-affected community;

(oc) “resilience” means the ability of a system, community or society exposed to hazards to resist, absorb, respond to and recover from the effects of a hazard in a timely and efficient manner and the expression “resilient” shall be construed accordingly;’;

(xiii) after clause (p), the following clause shall be inserted, namely:—

“(pa) “response” means the action taken directly before, during or after a disaster in order to save lives, reduce injury and health impact, ensure public safety and meet the basic subsistence needs of the people affected;”;

(xiv) after clause (t), the following clauses shall be inserted, namely:—

“(u) “Urban Authority” means the Urban Disaster Management Authority constituted under sub-section (1) of section 41A;

(v) “Urban Plan” means the plan for disaster management, prepared by the Urban Authority under sub-section (4) of section 41A;

(w) “vulnerability” means the conditions determined by physical, social, economic and environmental factor or process which increase the susceptibility of an individual, a community, asset, infrastructure or system to the impact of hazard.’.

Amendment of
section 3.

3. In section 3 of the principal Act, after sub-section (3), the following sub-section shall be inserted, namely:—

“(3A) The day-to-day functions of the National Authority shall be performed by the Vice-Chairperson and in the absence of the Vice-Chairperson, by a member designated by the Chairperson or, as the case may be, the Vice-Chairperson, of the National Authority.”.

Substitution of
new section for
section 5.

4. For section 5 of the principal Act, the following section shall be substituted, namely:—

Appointment of
officers and
other employees
of National
Authority.

“5. (1) The National Authority may, with the previous approval of the Central Government, specify the number, nature and category of officers and other employees, as is necessary to carry out its functions.

(2) The National Authority may also appoint experts and consultants as necessary to perform its functions.

(3) The salaries and allowances payable to, and other terms and conditions of service of officers, other employees, experts and consultants of the National Authority, shall be such as may be prescribed by the Central Government.”.

Amendment of
section 6.

5. In section 6 of the principal Act, in sub-section (2),—

(i) for clause (b), the following clause shall be substituted, namely:—

“(b) coordinate the preparation and approval of the National Plan;”;

(ii) in clause (i), after the words “take such other measures”, the words “which includes providing technical guidance to State Governments and State Authorities” shall be inserted;

(iii) after clause (j), the following clauses shall be inserted, namely:—

“(k) coordinate and monitor the implementation of the National Policy;

(l) lay down guidelines for preparing disaster management plan by different Ministries or Departments of the Central Government and the State Authorities;

(m) provide necessary technical guidance to the State Governments and the State Authorities for preparing their disaster management plans in accordance with the guidelines laid down by it;

(n) provide necessary advice and technical guidance to different Ministries or Departments and agencies of the Government of India, and the State Governments regarding mitigation, preparedness, and recovery and reconstruction measures;

(o) take stock of the entire range of disaster risks in the country periodically, including emerging disaster risks, and issue updated guidance for their mitigation.

Explanation.—For the purposes of this clause, it is hereby clarified that the expression “emerging disaster risks” refer to risks of those disasters that may not have taken place, but may occur in future due to extreme climate events and other factors as may be determined by the National Authority;

(p) plan and coordinate specialised training programmes for disaster management for different levels of officers, employees and voluntary rescue workers;

(q) provide necessary technical guidance or give advice to the State Authorities, District Authorities and Urban Authorities for carrying out their functions under this Act;

(r) promote general education and awareness in relation to disaster management;

(s) monitor the implementation of the guidelines laid down by the National Authority for integrating disaster prevention and mitigation measures in the development plans and projects of Ministries or Departments of the Government of India;

(t) undertake disaster preparedness assessment of each State periodically, in line with the National Plan and the guidelines laid down by it;

(u) undertake in the aftermath of severe disaster in any State, post disaster audit of preparedness and response activities of the State;

(v) create a national disaster database in accordance with such policy as may be determined by the Central Government;

(w) recommend guidelines for the minimum standards of relief to be provided to persons affected by disaster, which may include,—

(i) the minimum requirements to be provided in the relief camps in relation to shelter, food, drinking water, medical cover and sanitation;

(ii) the special provision to be made for widows and orphans;

(iii) *ex gratia* assistance on account of loss of life as also assistance on account of damage to houses and for restoration of means of livelihood; and

(iv) such other reliefs as the National Authority may deem appropriate.’.

6. After section 8 of the principal Act, the following sections shall be inserted, namely:—

“8A. (1) The National Crisis Management Committee constituted by the Government of India prior to the commencement of the Disaster Management (Amendment) Act, 2025, shall be the National Crisis Management Committee for the purposes of this Act and act as the nodal body to deal with the major disasters which have serious or national ramifications.

Insertion of new sections 8A and 8B.

National Crisis Management Committee.

(2) The National Crisis Management Committee referred to in sub-section (1) shall consist of the Cabinet Secretary as Chairperson and such other members as may be notified by the Central Government.

(3) The Chairperson of the National Crisis Management Committee may invite any other officer of the Central Government or a State Government for taking part in any meeting of such Committee and shall exercise such powers and perform such functions as the Central Government may determine.

(4) The procedure to be followed by the National Crisis Management Committee, in exercise of its powers and discharge of its functions, shall be such as may be prescribed by the Central Government.

High Level
Committee.

8B. (1) The High Level Committee constituted by the Government of India prior to the commencement of the Disaster Management (Amendment) Act, 2025, shall be the High Level Committee for the purposes of this Act which shall provide the financial assistance as envisaged under section 46 to the State Governments in the event of a disaster and approve the financial assistance for mitigation needs under section 47.

(2) The High Level Committee referred to in sub-section (1) shall consist of the Minister in-charge of the Ministry or Department of the Central Government having administrative control over the disaster management as the Chairperson and such other members as may be notified by the Central Government.”.

Amendment of
section 10.

7. In section 10 of the principal Act, for sub-section (2), the following sub-section shall be substituted, namely:—

‘(2) Without prejudice to the generality of the provisions contained in sub-section (1), the National Executive Committee may,—

(a) act as the coordinating body for disaster management;

(b) monitor the implementation of the National Plan and the plans prepared by the Ministries or Departments of the Government of India;

(c) monitor, coordinate and give directions regarding the mitigation and preparedness measures to be taken by different Ministries or Departments and agencies of the Government of India;

(d) evaluate the preparedness at all governmental levels for the purpose of responding to any threatening disaster situation or disaster and provide necessary advice, where necessary, for enhancing such preparedness;

(e) coordinate response in the event of any threatening disaster situation or disaster;

(f) lay down guidelines, or give directions to, Ministries or Departments of the Government of India, the State Governments and the State Authorities concerned regarding measures to be taken by them in response to any threatening disaster situation or disaster;

(g) require any Ministry or Department or agency of the Government to make available to the Central Government or State Government such men or material resources as are available with it for the purposes of emergency response, rescue and relief;

(h) advise, assist and coordinate the activities of the Ministries or Departments of the Government of India, State Governments, statutory bodies, other governmental or non-governmental organisations and others engaged in disaster management;

(i) in the event of a disaster or a threatening disaster situation affecting more than one State, issue directions for:—

- (i) coordination between the States concerned;
- (ii) containment measures as deemed necessary;
- (iii) monitoring and forecasting the effects of the disaster across multiple States;
- (iv) deployment of specialised teams, material resources and equipment;
- (v) requisitioning of necessary resources and technical capacities from public and private entities and their deployment towards reducing the impact of the disaster;
- (vi) adequate public awareness measures; and
- (vii) coordination of support to individuals and communities affected by containment measures; and

(j) perform such other functions as it may deem appropriate.

Explanation.—For the purposes of this section, it is hereby clarified that the expression “containment measures” means the actions and strategies adopted at the individual, community, district, State, multi-State or national levels aimed at controlling or slowing the spread of a disaster from its initial focal area.’

8. In section 11 of the principal Act,—

Amendment of
section 11.

(i) for sub-section (2), the following sub-section shall be substituted, namely:—

“(2) The National Authority shall coordinate, in consultation with the Central Government and the State Governments and other stakeholders in the field of disaster management, for preparation and approval of the National Plan having regard to the National Policy.”;

(ii) for sub-section (4), the following sub-section shall be substituted, namely:—

“(4) The National Authority shall review the National Plan once in every three years and update at least once in every five years.”.

9. Sections 12 and 13 of the principal Act shall be omitted.

Omission of
sections 12 and 13.

10. In section 18 of the principal Act, in sub-section (2),—

Amendment of
section 18.

(i) for clause (b), the following clause shall be substituted, namely:—

“(b) coordinate the preparation, and approve the State Plan in accordance with the guidelines laid down by the National Authority;”;

(ii) after clause (c), the following clause shall be inserted, namely:—

“(ca) approve the District Plan and Urban Plan, prepared by the District Authorities and Urban Authorities respectively, in accordance with the National Plan and State Plan;”;

(iii) after clause (h), the following clauses shall be inserted, namely:—

“(i) take stock of the entire range of disaster risks in the State, periodically including emerging disaster risks, and take necessary measures for their mitigation;

(j) coordinate and monitor the implementation of the National Policy, the National Plan and the State Plan;

(k) lay down guidelines for preparation of disaster management plan by the Departments of the Government of the State, the District Authorities and the Urban Authorities;

(l) promote general education, awareness and community training in regard to the forms of disasters to which different parts of the State are vulnerable and the measures that may be taken by such community to prevent the disaster, mitigate and respond to such disaster;

(m) provide necessary technical assistance or give advice to the District Authorities, local authorities and Urban Authorities for carrying out their functions effectively;

(n) provide information to the National Authority relating to different aspects of disaster management;

(o) lay down guidelines for standards of relief to persons affected by disasters in the State:

Provided that such standards shall in no case be less than the minimum standards in the guidelines laid down by the National Authority in this regard;

(p) maintain the State disaster database and provide inputs to the National disaster database.”.

Omission of
section 19.

Amendment of
section 20.

11. Section 19 of the principal Act shall be omitted.

12. In section 20 of the principal Act, in sub-section (2), after clause (b), the following clause shall be inserted, namely:—

“(c) the Director General of Police of the State shall be member of the State Executive Committee, *ex officio*.”.

Amendment of
section 22.

13. In section 22 of the principal Act, in sub-section (2),—

(i) clauses (a) and (c) shall be omitted;

(ii) in clause (d), for the words “and District Authorities”, the words “, the District Authorities and the Urban Authorities” shall be substituted;

(iii) clause (i) shall be omitted;

(iv) in clause (j), after the words “District Authorities”, the words “, Urban Authorities,” shall be inserted;

(v) clause (k) shall be omitted;

(vi) in clause (m), for the words “District Authority or the local authority”, the words “District Authority, Urban Authority or the local authority” shall be substituted;

(vii) clause (n) shall be omitted.

Amendment of
section 23.

14. In section 23 of the principal Act,—

(i) for sub-section (2), the following sub-section shall be substituted, namely:—

“(2) The State Authority shall coordinate the preparation of the State Plan having regard to the National Plan and guidelines laid down by the National Authority, and in consultation with local authorities, District Authorities, Urban Authorities and the people’s representatives as the State Authority may deem fit.”;

(ii) for sub-section (3), the following sub-section shall be substituted, namely:—

“(3) The State Plan shall be approved by the State Authority.”;

(iii) in sub-section (4), for clause (a), the following clause shall be substituted, namely:—

“(a) the exposure of different parts of the State to different hazards and vulnerability of its people, assets, infrastructure, livelihood and economic activity to those hazards;”;

(iv) for sub-section (5), the following sub-section shall be substituted, namely:—

“(5) The State Authority shall review the State Plan once in every three years and update atleast once in every five years.”.

15. In section 24 of the principal Act, in clause (e), after the words “any District Authority”, the words “, any Urban Authority” shall be inserted.

Amendment of section 24.

16. In section 25 of the principal Act, in sub-section (2), for clause (f), the following clause shall be substituted, namely:—

Amendment of section 25.

“(f) not exceeding two other Members to be appointed by the State Government who may be taken from other district level officers, disaster management experts and civil society organisation.”.

17. In section 31 of the principal Act, in sub-section (4), for the word “annually”, the words “at least once in every two years or earlier as necessary” shall be substituted.

Amendment of section 31.

18. In section 35 of the principal Act, in sub-section (2),—

Amendment of section 35.

(i) in clause (a), for the words “coordination of actions”, the words “coordinate and monitor actions” shall be substituted;

(ii) clauses (b) and (d) shall be omitted;

(iii) after clause (h), the following clause shall be inserted, namely:—

“(ha) notify the Ministries or Departments of the Government of India which shall have the responsibility for monitoring, early warning, prevention, mitigation, preparedness and capacity building with regard to disasters arising from various hazards;”.

19. In section 36 of the principal Act,—

Amendment of section 36.

(i) for clause (f), the following clause shall be substituted, namely:—

“(f) provide assistance to the National Authority and State Government for drawing up mitigation, preparedness and response plans, capacity building, data collection and identification and training of personnel in relation to disaster management;”;

(ii) in clause (g), after sub-clause (v), the following sub-clauses shall be inserted, namely:—

“(vi) carrying out rescue and relief operations in the affected area;

(vii) assessing the damage from any disaster; and

(viii) carrying out the rehabilitation and re-construction;”.

20. In section 38 of the principal Act, in sub-section (2),—

Amendment of section 38.

(i) in clause (a),—

(a) after the words “District Authorities”, the words “, Urban Authorities” shall be inserted;

(b) for the words “local authority”, the words “local authorities” shall be substituted;

(ii) in clause (b), for the words “and the District Authorities”, the words “the District Authorities and the Urban Authorities” shall be substituted;

(iii) in clause (d), for the words “and the District Plans”, the words “, the District Plans and the Urban Plans” shall be substituted;

(iv) in clause (i), for the words “and the District Authorities”, the words “, the District Authorities and the Urban Authorities” shall be substituted;

(v) after clause (i), the following clause shall be inserted, namely:—

“(ia) notify State-specific hazard-wise nodal Departments, which shall have the responsibility for monitoring, early warning, prevention, mitigation, preparedness and capacity building with regard to disasters arising from those State-specific hazards;”;

(vi) in clause (j), for the words “or the District Authorities”, the words “, the District Authorities or the Urban Authorities” shall be substituted;

(vii) for clause (k), the following clause shall be substituted, namely:—

“(k) provide recovery and reconstruction assistance to the victims of any disaster; and”.

Amendment of
section 39.

21. In section 39 of the principal Act,—

(a) in clause (f), for the words “and District Authorities”, the words “District Authorities and Urban Authorities” shall be substituted;

(b) in clause (g), after the words “authorities at the district level”, the words “and the Urban Plan by the Urban Authorities” shall be inserted;

(c) in clause (h), after the words “District Authorities”, the words “or the Urban Authorities” shall be inserted.

Amendment of
section 41.

22. In section 41 of the principal Act, in sub-section (1), after clause (d), the following clause shall be inserted, namely:—

“(e) prepare a disaster management plan as referred to in section 32.”.

Insertion of new
section 41A.

23. After section 41 of the principal Act, the following section shall be inserted, namely:—

Urban Disaster
Management
Authority.

‘41A. (1) The State Government may, by notification in the Official Gazette, constitute a separate Urban Disaster Management Authority for their State capitals and all cities having a Municipal Corporation, except for the National Capital Territory of Delhi and Union territory of Chandigarh.

(2) The Urban Authority constituted under sub-section (1) shall consist of the following, namely:—

(i) the Municipal Commissioner—Chairperson, *ex officio*;

(ii) the District Collector of the District concerned—Vice Chairperson, *ex officio*; and

(iii) such other members, with such pay and allowances as may be determined by the State Government—members.

(3) The Urban Authority may have a separate Secretariat at such place in the district as may be determined by the State Government.

(4) The Urban Authority shall be responsible for preparation of Urban Plan, which shall be approved by the State Authority.

(5) The Urban Authority shall be responsible for coordinating the implementation of the Urban Plan.

(6) The other functions and powers and such other matters relating to the Urban Authority shall be such as may be prescribed by the State Government.

Explanation.—For the purposes of this section, the expression “Municipal Corporation” means a Municipal Corporation as referred to in clause (c) of article 243Q of the Constitution.’.

24. For section 43 of the principal Act, the following section shall be substituted, namely:—

“43. (1) The Central Government shall provide the National Institute of Disaster Management with such officers, other employees and consultants, as it considers necessary, for carrying out its functions.

(2) The National Institute may recruit experts as per norms approved by the Central Government to perform such functions as provided in sub-section (9) of section 42.

(3) The salaries, allowances payable to officers and employees and the other terms and conditions of their service shall be such as may be prescribed.”.

25. In Chapter VIII of the principal Act, for the heading, the heading “DISASTER RESPONSE FORCE” shall be substituted.

26. After section 44 of the principal Act, the following section shall be inserted, namely:—

“44A. (1) The State Government may, by notification in the Official Gazette, constitute a State Disaster Response Force for the purpose of specialist response to a threatening disaster situation or disaster.

(2) Subject to the provisions of this Act, the State Disaster Response Force shall be constituted in such manner, with such functions and the terms and conditions of service of the members of such Force shall be such as may be prescribed by the State Government concerned.”.

27. In section 46 of the principal Act,—

(i) in sub-section (1), for the words “for meeting any threatening disaster situation or disaster”, the words “for meeting different aspects of disaster management” shall be substituted;

(ii) for sub-section (2), the following sub-section shall be substituted, namely:—

“(2) The Fund constituted under sub-section (1), shall be applied in accordance with the guidelines laid down by the Central Government in consultation with the National Authority.”.

28. In section 47 of the principal Act,—

(i) in sub-section (1), for the words “for projects exclusively for the purpose of mitigation”, the words “for meeting disaster mitigation needs” shall be substituted;

(ii) for sub-section (2), the following sub-section shall be substituted, namely:—

“(2) The Fund constituted under sub-section (1), shall be applied in accordance with the guidelines laid down by the Central Government in consultation with the National Authority.”.

29. In section 48 of the principal Act, for sub-section (2), the following sub-section shall be substituted, namely:—

Substitution of new section for section 43.

Officers, employees, experts and consultants of National Institute.

Amendment of Chapter VIII.

Insertion of new section 44A.

State Disaster Response Force.

Amendment of section 46.

Amendment of section 47.

Amendment of section 48.

“(2) The State Government shall ensure that the funds established—

(i) under clauses (a) and (c) of sub-section (1) are available to the State Executive Committee and the State Authority respectively and are applied as per the guidelines issued by the Central Government in consultation with the National Authority;

(ii) under clauses (b) and (d) of sub-section (1) are available to the District Authority.”.

Amendment of
section 50.

30. In section 50 of the principal Act,—

(i) in the opening portion, after the words “or the District Authority”, the words “or the Urban Authority” shall be inserted;

(ii) in clause (b), after the words “or District Authority”, the words “or Urban Authority” shall be inserted.

Amendment of
section 51.

31. In section 51 of the principal Act,—

(i) in clause (a), after the words “or District Authority”, the words “or Urban Authority” shall be inserted;

(ii) in clause (b), after the words “or the District Authority”, the words “or the Urban Authority” shall be inserted.

Amendment of
section 52.

32. In section 52 of the principal Act, for the words “or the District Authority”, the words “, the District Authority or the Urban Authority” shall be substituted.

Amendment of
section 56.

33. Section 56 of the principal Act shall be numbered as sub-section (1) thereof, and after sub-section (1) as so numbered, the following sub-section shall be inserted, namely:—

“(2) Notwithstanding any action under sub-section (1), it shall be lawful for the State Government on its own or on the directions given by the Central Government to take such disciplinary action under the relevant rules, against any officer who ceases or refuses to perform or withdraws himself from the duties of his office or on grounds of insubordination or dereliction of duty during a disaster:

Provided that the action taken by the State Government shall not be inconsistent with the directions given by the Central Government.”.

Amendment of
section 59.

34. In section 59 of the principal Act, for the word and figures “and 56”, the words, brackets and figures “and sub-section (1) of section 56” shall be substituted.

Amendment of
section 60.

35. In section 60 of the principal Act, in clause (a) and clause (b), after the words “the District Authority”, the words “, the Urban Authority” shall be inserted.

Insertion of new
section 60A.

36. After section 60 of the principal Act, the following section shall be inserted, namely:—

Power of Central
Government or
State
Government to
take action in
relation to nature
of hazard and
punishment for
its
contravention.

“60A.(1) The Central Government or the State Government may, by notification in the Official Gazette, require any person to take any action or refrain from taking any action, in relation to the nature of the hazard, which in the opinion of the Central Government or the State Government, as the case may be, is required for reducing the impact of a disaster.

(2) Any notification issued under this section shall be valid for a period specified therein or six months, whichever is earlier.

(3) Whoever contravenes the provisions of this section shall be liable to pay a penalty as specified in the notification of the Central Government or the State Government, as the case may be:

Provided that the penalty referred to in this sub-section shall not exceed ten thousand rupees.”.

37. In section 61 of the principal Act, the words “compensation and” shall be omitted.

Amendment of section 61.

38. In section 63 of the principal Act, after the words “or District Authority”, the words “or Urban Authority” shall be inserted.

Amendment of section 63.

39. In section 64 of the principal Act, after the words “or the District Authority”, the words “or the Urban Authority” shall be inserted.

Amendment of section 64.

40. In section 65 of the principal Act,—

Amendment of section 65.

(i) in sub-section (1), in the opening portion, after the words “or District Authority”, the words “or Urban Authority” shall be inserted;

(ii) in sub-section (3), for clause (a), the following clause shall be substituted, namely:—

“(a) “resources” includes human and material resources, and equipment;”.

41. In section 67 of the principal Act, for the words “or a District Authority”, the words “, a District Authority or an Urban Authority” shall be substituted.

Amendment of section 67.

42. In section 68 of the principal Act, for the words “or the District Authority” occurring at both the places, the words “, a District Authority or an Urban Authority” shall be substituted.

Amendment of section 68.

43. In section 69 of the principal Act, after the words “State Executive Committee”, the words “National Authority, State Authority, District Authority or Urban Authority” shall be inserted.

Amendment of section 69.

44. In section 71 of the principal Act, for the words “or District Authority”, the words “, District Authority or Urban Authority” shall be substituted.

Amendment of section 71.

45. In section 73 of the principal Act, after the words “the District Authority” occurring at both the places, the words “or the Urban Authority” shall be inserted.

Amendment of section 73.

46. In section 74 of the principal Act, for the words “or District Authority”, the words “, District Authority or Urban Authority” shall be substituted.

Amendment of section 74.

47. In section 75 of the principal Act, in sub-section (2),—

Amendment of section 75.

(i) after clause (a), the following clause shall be inserted, namely:—

“(aa) the salaries, allowances and other terms and conditions of service of officers, other employees, experts and consultants of the National Authority under sub-section (3) of section 5;”;

(ii) after clause (c), the following clause shall be inserted, namely:—

“(ca) the procedure to be followed by the National Crisis Management Committee in exercise of its powers and discharging of its functions under sub-section (4) of section 8A;”;

(iii) after clause (e), the following clause shall be inserted, namely:—

“(ea) the salaries, allowances and the other terms and conditions of service of officers and other employees of the National Institute under sub-section (3) of section 43;”.

Insertion of new section 76A.

48. After section 76 of the principal Act, the following section shall be inserted, namely:—

Power of National Authority to make regulations.

“76A. Without prejudice to the provisions of section 76, the National Authority, with the previous approval of the Central Government may, by notification in the Official Gazette, make regulations, other than regulations made under section 76, consistent with the provisions of this Act and the rules made thereunder to carry out the purposes of this Act.”.

Amendment of section 77.

49. In section 77 of the principal Act, after the words “National Institute of Disaster Management”, the words “and the National Authority” shall be inserted.

Amendment of section 78.

50. In section 78 of the principal Act, in sub-section (2), after clause (f), the following clauses shall be inserted, namely:—

“(fa) the powers, functions and other matters relating to Urban Authority under sub-section (6) of section 41A;

(fb) the manner of constitution of State Disaster Response Force, its functions and the terms and conditions of service of members of such Force under sub-section (2) of section 44A;”.

Amendment of section 79.

51. In section 79 of the principal Act, after sub-section (1) and the proviso thereunder, the following sub-section shall be inserted, namely:—

“(1A) Notwithstanding anything contained in sub-section (1), if any difficulty arises in giving effect to the provisions of this Act as amended by the Disaster Management (Amendment) Act, 2025, the Central Government may, by order published in the Official Gazette, make such provisions not inconsistent with the provisions of this Act, as may appear to it to be necessary or expedient for removing the difficulty:

Provided that no such order shall be made under this sub-section after the expiry of a period of three years from the date of commencement of the Disaster Management (Amendment) Act, 2025.”.

DR. RAJIV MANI,
Secretary to the Govt. of India.